UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage, Plaintiff, v. **ROBERT F. KENNEDY, JR.,** Secretary, U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES, et al. Defendants.	Case No.: CV-25-03367-PHX-SMB **DECLARATION OF KEVIN D. TURNAGE (Motion for Reasonable Meet-and-Confer Schedule)**

I, Kevin D. Turnage, declare as follows:

1. **Identity and Employment**

1.1. I am a United States citizen residing at **1003 E. Pinto Ct., Gilbert, AZ 85296**.

1.2. I am a career federal employee (GS-0610-12) serving as a **Nurse Consultant and Policy & Procedures Officer** at the **Phoenix Indian Medical Center (PIMC)**, a component of the United States Indian Health Service (IHS).

2. **Protected Disclosures (March 2022 – June 2025)**

2.1. **29 Mar 2022** – Disclosed to the **Office of Equal Employment Opportunity (EEO)** a hostile-work-environment complaint.

2.2. **21 Mar 2023, 7:33 a.m.** – Disclosed to **IHS Headquarters (CEO and senior leadership)** the escalation of a sexual-harassment complaint.

2.3. **21 Mar 2023, 10:14 a.m. –** 2 hours and 41 minutes after notifying HQ was called to Administration placed on immediate Administrative Leave and forcefully removed from property.

2.4. **21 Feb 2024** – Disclosed to **Debra Ward-Lund (IHS Executive) and the Office of Special Counsel (OSC)** a request to establish a Policy Committee and to address multiple policy-governance violations.

2.5. **1 Apr 2024** – Disclosed to **Clinton Pope (Chief Quality Officer)** a follow-up on the Policy Committee request; Pope responded dismissively and accused me of using AI-generated communications.

2.6. **21 May 2025, 10:44 a.m.** – Disclosed to **OSC and the HHS Office of Inspector General (OIG)** a Protected-Disclosure Notice asserting protected activity under 5 U.S.C. § 2302(b)(8).

2.7. **28 May 2025** – Disclosed to **Endreya McCabe, Clinton Pope, Marlon White, Tabitha Wright** a request for clarification of policy authority and an allegation of obstruction of official duties.

2.8. **9 Jun 2025** – Disclosed to the **Joint Commission; CMS Region 9; Senators Mark Kelly & Ruben Gallego; HHS-OIG** reports of patient-safety violations, undisclosed bed-capacity reductions, fraud, waste, and abuse at PIMC.

2.9. **9 Jun 2025** – Disclosed to **HHS-OIG (multiple divisions)** detailed allegations of fraud, waste, abuse, and policy non-compliance by senior IHS officials.

2.10. **9 Jun 2025** – Disclosed to **GAO – FraudNet** a material misrepresentation of hospital capacity during a CMS survey.

2.11. **14 Jun 2025** – Disclosed to **OIG** a follow-up complaint concerning non-compliance with the Indian Health Manual (IHM) Transmittal Notice 24-16.

2.12. **25 Jun 2025** – Disclosed to **OSC** supplemental information describing a pattern of retaliation and policy suppression.

2.13. **26 Jun 2025** – Disclosed to **IHS Headquarters DMEEO; OSC; Congressional offices (Sen. Gallego)** a formal retaliation complaint citing Title VII, 5 U.S.C. § 2302, and 5 C.F.R. Part 735.

3. **Retaliatory Personnel Actions by IHS**

3.1. **Administrative Leave – 27 Jun 2025 through 14 Jul 2025 (10 workdays).** No written threat or legitimate-interest analysis was provided.

3.2. **Investigative Leave – 15 Jul 2025 through 26 Aug 2025 (30 workdays).** Issued without the statutory justification required by 5 U.S.C. § 7513(b) or 5 C.F.R. § 630.1505(b).

3.3. **First Extension – 27 Aug 2025 through 9 Oct 2025 (30 workdays).** The extension was unsigned and lacked the approvals mandated by law.

3.4. **Second Extension – 10 Oct 2025 through 25 Nov 2025 (30 workdays).** Again unsigned and deficient.

3.5. **Notice Leave – Began 25 Nov 2025 ("until further notice").** I was barred from entering IHS facilities without prior approval; no justification was provided.

4. **Constructive Suspension and Irreparable Harm**

4.1. From **27 Jun 2025 through 25 Nov 2025,** I was on non-duty paid status for **108 federal workdays**, currently been off work for **186 days**, exceeding the 14-day threshold that constitutes a constructive suspension under 5 U.S.C. § 7512(2) and 5 C.F.R. § 752.404.

4.2. Although I continue to receive salary and benefits, I have suffered:

a. **Damage to my professional reputation** – public disciplinary-type leave orders, confiscation of credentials, and removal from approval workflows have been communicated to colleagues, external partners, and regulatory agencies.

b. **Inability to perform official duties** – the successive leaves, removal from approval workflows, and denial of facility access have completely prevented me from exercising the duties of my position, rendering me a constructive suspension.

c. **Continuing threat of further retaliation** – the pattern of increasingly restrictive actions demonstrates an ongoing and escalating threat that will persist unless the Court intervenes.

5. **Meet-and-Confer Efforts**

5.1. **December 1-2 2025** – I sent an email to Defendant counsel (see Exhibit 1-1) requesting a good-faith meet-and-confer regarding the protective-order motion and

asking that Defendant respond by **December 9, 2025**.

5.2. **December 15 2025** – Defendant counsel replied (see Exhibit 1-2) requesting an extension of the response deadline to **December 19, 2025**. I declined the extension and reiterated the original deadline.

5.3. **December 17 2025** – Defendant counsel sent a second email (see Exhibit 1-3) stating "please let me know by tomorrow, **December 18, 2025**," thereby imposing a **24-hour** deadline to indicate whether I would amend the complaint.

5.4. **December 9 2025** – Defendant's meet-and-confer notice required my response **within 24 hours** of receipt (i.e., by **December 10, 2025**). No substantive discussion occurred.

6. **Legal Deficiency of the 24-Hour Deadlines**

6.1. The 24-hour deadlines set by Defendant **do not satisfy** the good-faith conference requirement of **Fed. R. Civ. P. 37(a)(1)**, which mandates a meaningful opportunity to confer before filing a motion.

6.2. Likewise, they violate **Local Rule 7.2** of the District of Arizona, which requires a reasonable period for meet-and-confer and a finding of good cause before any deadline may be shortened.

7. **Relief Sought**

7.1. I respectfully request that the Court **order the parties to confer in good faith within ten (10) business days** of the entry of the Court's order to discuss any amendment to the complaint and to set a schedule for filing responsive pleadings.

7.2. I further request that the Court **enter a protective order** enjoining the United

States Government, its officers, agents, servants, employees, and any persons acting in concert from taking any further adverse personnel actions, from restricting my access to IHS facilities, and from retaliating against me for my protected disclosures.

8. **Conclusion**

I make this declaration under penalty of perjury in accordance with Federal Rule of Civil Procedure 56, and I declare that the foregoing statements are true and correct to the best of my knowledge, information, and belief.

/s/ Kevin D. Turnage

Kevin D. Turnage, Pro Se Plaintiff

Date: **December 29, 2025**

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